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First Information Report

Section 154 CrPC

Every information relating to the commission of a cognizable offence, if given orally to an officer in charge of a police station, shall be reduced to writing by him or under his direction, and be read over to the informant; and every such information, whether given in writing or reduced to writing as aforesaid, shall be signed by the person giving it, and the substance thereof shall be entered in a book to be kept by such officer in such form as the State Government may prescribe in this behalf.

Provided that if the information is given by the woman against whom an offence under section 326A, B, section 354, 354A, B, C, D, section 376, 376A, B, C, D, or section 509 of the Indian Penal Code is alleged to have been committed or attempted, then such information shall be recorded, by a woman police officer or any woman officer:

provided further that

(a) in the event that the person against whom an offence under section 354, section 354A, section 354B, section 354C, section 354D, section 376, section 376A, section 376B, section 376C, section 376D, section 376E or section 509 of the Indian Penal Code is alleged to have been committed or attempted, is temporarily or permanently mentally or physically disabled, then such information shall be recorded by a police officer, at the residence of the person seeking to report such offence or at a convenient place of such person's choice, in the presence of an interpreter or a special educator, as the case may be;

(b) the recording of such information shall be video graphed;

(c) the police officer shall get the statement of the person recorded by a Judicial Magistrate under clause (a) of sub-section (5A) of section 164 as soon as possible.

A copy of the information as recorded under sub section (1) shall be given forthwith, free of cost, to the informant.

Any person aggrieved by a refusal on the part of an officer in charge of a police station to record the information referred to in sub section(1)may send the substance of such information, in writing and by post, to the Superintendent of Police concerned who, if satisfied that such information discloses the commission of a cognizable offence, shall investigate the case himself or direct an investigation to be made by any police officer subordinate to him, in the manner provided by this Code, and such officer shall have all the powers of an officer in charge of the police station in relation to that offence.

PSO 551: FIR

Information, coming under any of the following headings received at a Police Station, shall be registered in the First Information Report Book which is the book prescribed by section 154, Criminal Procedure Code.

1. Cognizable cases, including those referred to the Police for inquiry by Magistrates
2. Complaints falling under Regulation IV of 1821(VAO's Achu Report or Yadast)
3. All occurrences which need investigation such as suicides accidental deaths, accidental fires, straying of cattle etc. only where there is reason to suspect the commission of a cognizable offence.
4. Non-cognizable cases endorsed to the Police for enquiry. Cases u/s 107 to 110 of the Criminal Procedure Code after it has been determined to put them before a Magistrate.

5. Offences to be reported to the Central Excise, Salt and Customs Departments.
6. Reports made to Magistrates with a view to take action under sections 144 and 145 of the Criminal Procedure Code.

PSO 552: FIR - To whom sent

Ordinarily one copy of the First information report will be retained in the Station and original FIR will be forwarded immediately in the normal course to the Magistrate having jurisdiction and a third with the Station House. The FIR will be sent to the Superintendent or Sub-Divisional Police Officer through the Circle Inspector. When the Magistrate having jurisdiction is not the local Sub-Magistrate a fourth copy will be sent to the latter also.

PSO 554: To be written before proceeding to investigate

The First Information Report shall invariably be written before the Investigating Officer commences investigation

PSO 555: Express Report

(1) In all cases of

i. Murder
ii. Culpable Homicide
iii. Dacoity
iv. Robbery
v. House breaking and theft Rs 2,00,000/- (Two lakhs) and above
vi. Theft Rs 3,00,000/- (Three lakhs) and above (G.0 MS No. 86 Home (POL.12) Dept. Dated 03.02.2014)
vii. Serious disturbance and riot.
viii. Kidnapping of Children for the purpose of begging
ix. Violence resulting in any Grievous hurt to Adi-Dravidars,
x. Rape in which Adi-Dravidars are victims,
xi. Serious mischief or Arson involving properties of Adi-Dravidars,
xii. Offence under Section 3 and 4 of the Protection of Civil Rights Act 1955,
xiii. Serious offence involving Adi-Dravidars where caste consideration are suspected and
xiv. Theft of Idols and antiques irrespective of the value of loss.
xv. Possession, manufacture, or use of bombs or explosives.
xvi. Robbery or attempted Robbery by administering of Datura or drug or poison.
xvii. Kidnapping of women and children in a systematized manner.
xviii. Any other occurrence may be of the interest of the Government.
xix. Serious breach of the peace.
xx. Any riot involving the use of firearms.
xxi. Any riot involving death of any person.
xxii. Any riot involving an attack on Police.
xxiii. All cases of Communal Riots
xxiv. Students strike.
xxv. Labour strike.
xxvi. A specially grave nature, copy of the First Information Report shall be sent to the office of the Superintendent or Sub Divisional Officer, to the Circle Inspector to the local Sub-Magistrate cases for the above lists of crimes, to the Revenue Divisional Officer and Ex-Officio First Class Magistrate also. For cases coming within the above categories and reported in Sub- Divisions, which are particularly serious or include specially important circumstances, but are not reported by Radio under order No. 559(2) a copy of the First Information Report shall also be sent to the Superintendent. In specially grave occurrences a copy of the First Information Report shall be sent to the District Collector and Additional District Magistrate

(2) These reports are termed as Express Reports and should be sent in the quickest way possible either by post or by hand.

NOTE: All cases of thefts of Idols and Antiques is respective of the value of loss

involved shall be regard as cases of "Specially grave nature".

*All Gang cases and all important conspiracy referred in PSO 577 shall be treated as Express Report as defined in PSO 555 (GO M/S Rt.No.255 Home (Police XII) Department Dated 10.04.2018).

PSO 557: Reports to the Inspector General, Deputy Inspector General and The Director General of Police

Officers of and above the rank of Deputy Superintendents of Police shall inform the Inspector General of Police (Zone), Deputy Inspector General and the Director General directly or by Radio of any specially grave occurrence such as a serious breach of the peace or other grave offence. Subsequently, the Superintendent of Police shall send as soon as possible a detailed report in quadruplicate direct to the Director General (a copy being sent to the officers of and above Deputy Inspector General). When the full facts regarding the occurrence are known and will thereafter keep IGP (Zone) the Deputy Inspector General and the Director General acquainted with the course of event by prompt and detailed reports

Any riot involving the use of fire arms, the death of any person or an attack on the Police and all cases of communal riot will be considered as a serious breach of peace and the facts should be reported at once briefly by IGP (Zone) or wireless and fully by letter, to the Director General and Deputy Inspector General.

PSO 558

The Director General of Police shall send reports to the Chief Secretary to the Government, Pubic Department with a copy to Secretary to the Government, Home Department, on the following subjects as soon as the incidents occur:

(1) Communal rioting;
(2) Disturbances involving the breach of the peace or death of any person; Disturbances involving the use of fire arms
(3) Assault on Police in which death or serious injury to police is reported
(4) Cases of possession or manufacture or use of bombs or explosives of specially grave nature or involving or political motive.
(5) Serious fire accidents involving heavy loss of public life and property;
(6) Strikes of all kinds;
(7) Rioting and disturbances in which Police opened fire.
(8) All cases of alleged torture by the Police or death or grievous injury caused while in Police custody; and
(9) All other important and grave occurrence (only such cases of grave nature not covered by items (1) to (9) which may be interest to the Government

Copies of reports shall be sent to the Chief Minister of TamilNadu and the Secretary to the Governor of Tamil Nadu Copies of reports on item (7) above will also be sent to the Minister for Labour and the Secretary to the Government, Labour and Employment Department in the case of labour strikes and to the Minister for Education and the Secretary to the Government, Education Department in the case of strikes by student and teachers in educational institutions.

PSO 559: Registry of cases when station limits of occurrence are doubtful :

When a crime has been committed close to a boundary between Stations and it is at first doubtful in which Station limits it occurred, the Police to whom it is first reported shall register the case and take up the investigation the Station to which should take up investigation shall subsequently be settled.

When an offence committed within Railway Police jurisdiction is reported to District Police Station on the Railway line the latter shall forthwith inform the Railway Police Station concerned by telegram the telegram should be followed up by a First information Report transferring the cases, if the offence is reported to a District Police Station on the railway line, the First information Report transferring case to the Railway Police station with jurisdiction shall be sent forthwith by express and through the Railway Police travelling staff.

PSO 560: Instruction Regarding First Information Report

(1) Cases entered in the First Information Report Book will be given a consecutive number and this number will constitute the Crime Number for the purpose of the subsequent records

(2) The thumb impression of the informant will usually be taken only in the case of illiterate person

(3) A copy of the First Information Report should be furnished free of charge to the complainant or informant under proper acknowledgment immediately after the complaint is registered.

Conditions required for recording FIR under Section 154 CrPC.

The following requirements are to be satisfied to constitute a information as "First Information Report" within the meaning of this section;

Firstly, It must be an information regarding to the commission of a cognizable offence;

Secondly, It must be given to an Officer-in-charge of a Police Station;

Thirdly, It must be reduced into writing either by the informant (complainant) himself and it should be signed by the Informant;

Fourthly, If it is oral, it must be taken down in writing and read over to the Informant, who should sign it and it should be recorded according to the direction of the Informant.

Fifthly, The substance of information should be entered in the prescribed registrar, Daily diary, General Diary, otherwise know Station Diary or Station House Register.

Object of FIR

- The Principal object of FIR from point of view of the informant is to set the criminal law in motion and from the point of view of the investigating authorities has to obtain information from the person about the commission of cognizable offences so as to commence the investigation.
- The FIR we may point out, does not constitute substantive evidence though its importance is conveying the earliest information about the commission of offence cannot be doubted.
- It can, however only be used as a previous statement for the purpose of either corroborating its maker U/s. 157 of the Indian Evidence Act or in contradicting him U/s. 145 of the Act.
- It cannot be used for the purpose of corroborating or contradicting other witnesses.

Contents of FIR

The FIR must contain as far as possible the following points.

- Whether the Informant is an eye-witness or a hearsay witness.
- The nature of the cognizable offence.
- The name, detailed description of the accused person (his colour, height, approximate age, features clothing, distinctive marks on his face etc.)
- The name and identity of the victim of the crime.
- The date and time of the occurrence.
- The date, time and place where the crime was committed.
- The motive for committing the crime.
- How the crime was committed (description of the actual occurrence of the crime, the part played by the each accused and the weapon used by him).
- The name and address of the witnesses of the crime with nature of evidence.
- The articles taken away by the accused.
- Clues left behind by the accused, any articles belonging to the accused such as footwear, footprints, finger prints etc.).
- The description of the culprits should be given as far as possible in detail if the FIR

is registered on the statement of eye witnesses. A mistake or doubtful identity may be carefully avoided as it will spoil the case.

Different types of Information

- By filing a complaint before the Magistrate u/s 190 (1) CrPC.
- By giving information to the Police u/s 154 CrPC.
- FIR by victim/aggrieved person-Section 32(1) IEA.
- FIR by eye witnesses-Section 8, 145, 155 and 157 IEA.
- FIR by the accused-Section 8, 21 and 27 IEA.

FIR Vs Complaint

- FIR is before the Police whereas complaint u/s 2(d) CrPC is before the Magistrate.
- A complaint may be made regarding cognizable and non-cognizable offence but FIR can be registered only in respect of cognizable offence.
- FIR can be given by any person, but in the case of certain offences, a complaint can be made only by a person authorized by law.
- FIR empowers the Police to commence investigation in case of any cognizable offence, but a Magistrate can take cognizance on the complaint or on Police Report u/s 173(2) CrPC, but not on FIR.(Sec.190(1) CrPC.)
- The complainant is examined on oath by the Magistrate. But FIR giver is not examined on oath by police but he will be examined U/s.161 CrPC.

Registering of FIR

- FIR by person who has knowledge of or heard relating to the commission of cognizable offence-Section 154(1) CrPC.
- FIR can be registered by Police Officer he has reason to suspect the commission of offence which he is empowered to investigate - Section 157 CrPC .
- The term First Information means information received u/s 154 CrPC. Though the information received under this Section is generally known as FIR, the word first is not used anywhere in the Code.
- Relating to cognizable offence does not mean all details should be given, it is sufficient if it indicates that a cognizable offence has been committed.
- For registering a case two provisions 154 and 157 CrPC will be invoked.
- As per Section 154(1) CrPC substance of information is only recorded.
- After recording such information the Police Officer has to prepare a report by filling up all the columns in the printed FIR form prescribed by the State Government and forthwith send such FIR along with original report filed by the complainant to the Court u/s 157(1) CrPC. Only then it can be said the case has been registered.

Remedy when refused to register FIR

- Section 154(3) of CrPC gives a remedy to the person aggrieved by a refusal on the part of the SHO to record the Fl R.
- If the SHO refuses to record the information, the person aggrieved may send the substance of such information, in writing and send by post, to the Superintendent of Police concerned, who on being satisfied that the information discloses a cognizable offence, the case may be investigated by himself or he may direct any of his subordinate Police Officer to investigate the case as per Section 154(3) CrPC.
- If Police did not investigate the case, the aggrieved person can file a complaint before a Magistrate having jurisdiction to take cognizance of the offence u/s 190(1) (a) CrPC.
- He is not entitled to approach the High Court directly to file a Writ petition and seeking a direction to register FIR and conduct an investigation.

Suo - motu registration of FIR by Police

- In certain circumstances if no one has come forward to furnish information but the

physical appearance or information from other sources reveals commission of cognizable offence, the Station House Officer can register a case suo-motu and proceed without waiting for the report as per Section 157(1) CrPC.

- Sometimes if there is a threat to informant, case can be registered by police suo-motu.
- The Police Officer need not disclose the name of the informant even to the Court when asked by the Court, since there is a protection u/s 125 of IEA.

Registration of cases when non cognizable offence reported

- When information is received relating to commission of a non-cognizable offence, the Police shall not register a case but make an entry in the Station General Diary.
- If the Police Officer produces information regarding a non-cognizable case before the Magistrate, he may make a report with facts as per section 190(1) (b) CrPC and PSO 561.
- Information regarding some incidents, though they are not cognizable offence are being registered it in the FIR book as prescribed u/s 155 CrPC, after obtaining permission from the jurisdictional Magistrate
- Police is bound to register a case under appropriate Sections of law if complaint is forwarded to officer in-charge of PS by the jurisdictional Magistrate for registering a case under section 156(3) CrPC.
- Complaint forwarded by the Magistrate for registering and investigating a case u/s 156 (3) is meant for Police Officer only, whereas in Section 202 may be for Police Officer or any other person.
- When an order for investigation by the Magistrate is made u/s 156 (3) of the code, the proper direction to the Police would be to register a case at the Station by treating the complaint as the FIR and investigate into the same.
- If any petition/complaint given or sent to Superior officer or any other department when marked to the concerned jurisdictional police station for taking necessary action and discloses the commission of cognizable offence, then treating it as first information the officer in-charge of PS has to register FIR under appropriate Section of law.

Jurisdiction of FIR

- It is not required to see (a) territorial jurisdiction about the place of occurrence, (b) subject matter whether it is an offence under IPC or Special and Local Law.
- Though there are other departments established to deal with offence under Special and Local Laws, the power of the Police to take cognizance is not deprived unless there is a specific provision in that Special and Local Law debarring the Police.
- The Police Officer shall not refuse to register the FIR on the point of jurisdiction if the content of the complaint discloses it to be cognizable offence.
- After investigation the case shall be transferred to the concerned jurisdictional PS.
- Section 154, 162 r/w 177 and 178 CrPC. If 10 finds that the Crime is not committed within his territorial jurisdiction he can forward the FIR to the PS concerned. But this would not mean that in a case which required investigation, the Police Officer can refuse to record the FIR and or investigate it.
- Refusal to record an FIR on the ground that the place of crime does not fall within the territorial jurisdiction of the PS amounts to dereliction of duty.
- As per 154 and 157(1) CrPC, the First information received and report forthwith sent to Magistrate meant for cognizable offences only.
- Any material incriminating the accused in such FIR is not admissible.

SHO should ensure that record made by him is truthful and as per the statement of the information. He should avoid imparting his own impressions and high sounding language. It should be in the words of the informant. The following things may be remembered:-.

Eleven Ws in mind while recording the FIR.

1. What information have you got to convey?
2. What is his capacity as eyewitness, victim or hearsay?
3. Who possibly committed the crime? (Name of the accused/suspects)
4. Who is the victim/deceased of crime?
5. When did it occur? (Date and time)
6. Where did it occur? (the place)
7. Why? (Motive of crime).
8. Which way? (Describe the incident and role played by each accused-weapon used, i.e. overt act etc)
9. Who else was present then? Witnesses etc.
10. What was taken away by accused? (Any article/property)
11. What traces were left by the accused? (Physical clues)

Characteristics of FIR.

- FIR is a public document as per 74 IEA.
- FIR may be hearsay.
- FIR is not a post investigation document.
- The characteristics of FIR are described in PSO 551.
- The principle object of the FIR is only to make a complaint to the Police Officer to set the criminal law into motion.
- No second FIR is necessary on the same facts of the same incident.
- FIR cannot be quashed even by the High Court in exercise of its inherent power u/s 482, if it is registered as per law.
- FIR should be sent forthwith to the concerned Magistrate u/s 157 (1) CrPC.
- If an Informant or complainant refuses to sign in the FIR given by him presumed to be commits as offence u/s 180 IPC.(Refusing to sign statement)FIR in the crime investigation is not the beginning and ending of the case.
- It only sets the machinery into motion.

Evidentiary value of FIR.

- FIR is a public document.
- FIR is not an encyclopedia of the entire case, and is not even substantive piece of evidence.
- It can be used only to corroborate or contradict the informant.
- It can be used for corroboration by the prosecution u/s 157 WA and for contradiction by the accused u/s145 IEA and it can be used to impeach the credit of the person, who lodged it u/s 155 IEA.
- It is useful u/s 8 (j) and (k) of IEA to prove the previous motive and subsequent conduct of the accused.
- FIR may become a Dying Declaration u/s 32 (1) IEA and its evidentiary value is more.
- It may be admitted u/s of 6 WA as Res-Gestae i.e. action done or words spoken in the course of a transaction at or about the scene of occurrence, in which case it becomes admissible evidence.
- Details like motive, preparation etc. which are purely non confessional in nature by the accused are also admissible u/s 8 and 21 of IEA.
- FIR may become a confession u/s 27 IEA but will be hit by Sec.25 IEA.
- Though the confession before the Police Officer is inadmissible u/s 25 IEA, the portion of the confession which led to the recovery of the dead body, weapon and other material object is admissible u/s 27 of IEA.
- Any omission of important fact affecting the probabilities of the case may be relevant u/s 11 of IEA in finding the veracity of the Prosecution case.
- Though hearsay evidence is inadmissible u/s 60 of WA, FIR can be a hearsay narration of the occurrence of the crime. FIR u/s 154 CrPC is not substantive evidence it is meant to help the Police to start the criminal law into motion.
- Confessional nature of the FIR by the accused is inadmissible u/s 25 of IEA.
- If it is not a confession but contains admissions made by the accused, the FIR is admissible in evidence u/s 21 IEA.

- A part of the FIR is admissible as an admission u/s 21 IEA even when the other portion of it is a confession is inadmissible u/s 25 of the Act, if that part can be properly separated from the confessional part.
  - It is very important to decide whether a statement falls u/s 154 or 162 CrPC.
  - If a statement is one made u/s 154, it is admissible in evidence but if it is one coming u/s 162 (statement recorded subsequent to the commencement of investigation) it cannot be used as a evidence except for the purpose of contradiction.
  - It is desirable to have the first information received from injured or affected party and by eyewitness, attach more evidentiary value.
  - FIR does not require all details, but if first information is furnished by the injured or eyewitness must contain all the material facts.
  - If any material fact is missing in it and later during the time of deposing evidence in the Court, the missing fact is bought for the first time, the Court may get suspicion over such evidence.
  - So if the information is lodged by the injured or eyewitness the material facts of the incidence should not be left.
  - Otherwise it will give scope for material omissions, contradictions and improvements.
  - As a result the evidence given by the first information is decreased.

General defects relating to the FIR, which may cause acquittal.

1. Delay in lodging a complaint without explaining the reason.
2. Not obtaining the signature of the complainant on the FIR or in the statement.
3. Delay in dispatch of Fl R to the Court.
4. Eyewitness or injured being the complainant not giving full account of the offence having known or see all detail of crime.
5. Content of FIR contrary to the fact of the offence and thereby not being able to explain.
6. Not examining the scribe of the complaint during investigating and during the trial
7. Not examining the complainant, who lodges the compliant during the trial.
8. Not examining the officer who registered the case during the trial .
9. Not examining the Constables during the trial who handed over the FIR to the Court.

Quashing of FIR Principles laid down by the Apex Court

Supreme Court decision in "State of Haryana vs. Bhajan Lal, " AIR 1992 SC 604, the Apex Court has laid down the following guidelines for exercise of extraordinary power under Article 226 of the Constitution or inherent power under section 482 CrPC by High Court in quashing Fl R or complaint during the stage of investigation.

i. Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirely do not prima facie constitute any offence or make out a case against the accused;

ii. Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by Police Officers under section 156(1) of the Code except under an order of a Magistrate within the purview of section 155(2) CrPC.

iii. Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.

iv. Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceedings against the accused.

v. Where there is an express legal bar engrafted in any of the provisions of the Code or the concerned Act (under which a criminal proceedings is instituted) to the institution and continuance of the proceedings and / or

where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party;

vi. vi. Where a criminal proceedings is manifestly attended with mala fide and / or where the proceedings is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to cite him due to private and personal grudge.

The High Court may receive petitions under the following provisions to stop further action.

1. A petition under the inherent power of the High Court u/s. 482 of CrPC.
2. A Writ petition- Writ of Mandamus under Article 226 of the Constitution of India.
3. A Writ Petition- Writ of Habeas Corpus for setting the accused at liberty when the accused is under the custody on the basis of FIR.

Frequently asked questions during trial

1. What is the distance between police station and the place of occurrence?
2. What is the general available mode of conveyance for going to police station from the place of occurrence?
3. What amount of delay is in filling the F.I.R.?
4. Whether the F.I.R. mentions the names of the witnesses?
5. Whether the F.I.R. mentions the names of the accused?
6. Reasons for the absence of names.
7. Mode of giving the F.I.R., witness or by the injured himself?
8. If the F.I.R. is written whether some help has been taken in writing down the F.I.R.
9. To whom the F.I.R. was given?
10. Is there any discrepancy between the version in F.I.R. and in subsequent evidence?
11. If the F.I.R. is oral whether it is taken down on dictation or after the narration of the story the scribe has written down the facts?
12. If there were chances for manipulation?
13. Whether the witnesses named in F.I.R. were not produced reasons.
14. If a witness not named in F.I.R. is produced whether he was actually present and reasons for the absence of his name?
15. Whether the scriber of F.I.R. is produced?
16. Whether the witness is truthful?
17. Whether the witness has disbelieved?
18. Whether the witness is a chance witness?
19. Whether the witness is a police pocket witness?
20. Whether the witness has bad antecedents to his credit?
21. Whether the witness speaks in direct conflict of medical evidence?
22. Whether the witness speaks something improbable?
23. Whether the witness is overzealous and speaks of something which he could not have noted in the circumstances of the case?
24. Whether the witness is inimical to the accused?
25. Whether the witness is influenced by the injured?
26. If one witness contradicts the other?
27. If the witness contradicts his previous statement?
28. If the witness omits anything material from his previous statement?
29. If the witness states anything material new which he had not stated to the investigating officer in his statement under sec.161 CrPC?
30. What is the motive for implication?
31. What may be the motive for "crime"?
32. Did the witness identify the accused in Court?
33. Did the witness identify the accused at the time of occurrence?
34. What was the source of light at the time and place of occurrence?
35. Whether the light was sufficient to enable a man to identify anybody, say, as to what was the time and then find out when the sun set so as to know the correct position of light?
36. Whether witness has defect in his eye-sight?
37. What is the status of the witness; can he be influenced by the police?
38. When was the statement by the police recorded? If after considerable delay, reasons.

What did the eye-witnesses do when the crime was being committed?

39. Whether the witness is not mentally developed to understand the affairs?
40. Whether the witness has been tutored?
41. Whether the witness has turned hostile? Reasons for the same.
42. What was the distance of the witness from the place of occurrence?
43. What made the witness to come to court and depose at the state of his daily business?
44. Whether the witness accepts the defence version?
45. Whether the witness shifts the place of occurrence?
46. Whether the witness makes a change in the time of occurrence affecting the possibility of time or to render the F.I.R. delayed.
47. Whether the injuries may be self-inflicted?
48. Does he make any explanation for the injuries of the accused party?
49. How long after the occurrence the investigating officer went to the spot and what did he do?
50. Did the investigation officer prepare the papers at the spot or some other concurrent place?
51. When did the investigating officer record the statement?
52. Whether the investigating officer tried to affect the arrest of the accused immediately after the investigation started?
53. What was the role of the accused in the crime?
54. Whether the complainant was the aggressor?
55. Whether the accused were known to the witnesses from before the occurrences?
56. If the F.I.R. contains details of the occurrence?
57. Who gave the F.I.R.? His relation with the occurrence?
58. If the F.I.R. is lodged in two different police stations at different times?
59. Whether the writer and the informant of the F.I.R. are examined? If not reasons
60. Whether all particulars of the accused and the property stolen have been furnished to the police during investigation?
61. Whether the report is lodged by a person who is not possessed of first-hand information?
62. Who are the people who accompanied the informant at the time of report?
63. When their statements were recorded, i.e. before lodging the report or after its lodging?
64. After whet time the report was sent to superintendent of police and the Magistrate concerned?
65. Whether the police have used undue control over the witnesses before their evidence in Court.
66. What is the manner of occurrence?
67. Did the injured also play something unpleasing to the accused at the time of occurrence?